

Decided On : 11.11.2025 vs State Of Himachal Pradesh & Another on 11 November, 2025

Author: Virender Singh

Bench: Virender Singh

2025:HHC:38000 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr.MMO No. : 1048 of 2025 .

Decided on : 11.11.2025 Madhav Jindal & Others ...Petitioners Versus State of Himachal Pradesh & Another ...Respondents of Coram The Hon'ble Mr. Justice Virender Singh, Judge.

rt Whether approved for reporting?1 For the petitioners : Petitioners in person Mr. Kunal Thakur, Advocate.

For the respondents : Mr. Rohit Sharma, Deputy Advocate General, for respondent No.1.

Respondent No.2 in person with Mr. Ram Lal Thakur, Advocate.

Virender Singh, Judge (oral).

Petitioners have filed the present petition, under Section 528 of the Bharatiya Nagarik Suraksha Sanhita (hereinafter referred to as 'BNSS'), for quashing of FIR No.125 of 2023, dated 08.10.2023, (hereinafter referred to as the FIR, in question), registered with Police Station, Whether Reporters of local papers may be allowed to see the judgment? Yes.

2 2025:HHC:38000 Dharampur, District Solan, H.P., under Sections 498A, 323, 506, and 34 of the Indian Penal Code, (hereinafter .

referred to as the 'IPC'), and Sections 3 and 4 of the Dowry Prohibition Act (hereinafter referred to as the DP Act), as well as, the proceedings resultant thereto, which are stated to be pending before the Court of learned Additional Chief of Judicial Magistrate, Solan, District Solan, H.P., (hereinafter referred to as the 'trial Court').

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2. The relief of quashing has been sought on the basis of the compromise effected between the parties.

3. According to the petitioners, on the statement of respondent No.2, the FIR, in question, has been registered against them.

4. After registration of the FIR, the police has conducted the investigation and submitted the charge sheet, which is now pending adjudication before the learned trial Court.

5. According to the petitioners, during the pendency of the case, petitioner No.1 and respondent No.2, had decided to part their ways and moved a petition for divorce, under Section 13B of the Hindu Marriage Act, on 3 2025:HHC:38000 the basis of mutual consent, before the Court of learned Principal Judge, Family Court, Solan, for dissolution of .

marriage. In the said petition, according to the petitioners, petitioner No.1 and respondent No.2, have made joint statement for the first motion, on 7.8.2025. The case is now fixed in the month of February, 2026, for recording of their joint statement, on second motion.

6. The terms and conditions of the compromise rt have been reduced into writing, which are annexed with the petition, as, Annexure P2.

7. On the basis of the above facts, a prayer has been made that the FIR, as well as, proceedings, resultant thereto, pending before the learned trial Court, may kindly be quashed and set aside, by allowing the petition.

8. When put to notice, the State has filed the status report, disclosing therein that on 8.10.2023, respondent No.2, had moved a complaint to the police, mentioning therein, that she had solemnized marriage with petitioner No.1, on 10.05.2022, as per the Hindu Rites and Rituals and her parents have given gifts/dowry, as per their capacity. After one month of the marriage, the 4 2025:HHC:38000 accused persons (petitioners) had started quarrelling with her for bringing less dowry. Petitioner No.1 is habitual of .

taking liquor and synthetic drugs and under intoxication, he used to beat her and petitioners No.2 and 3 used to provoke him against respondent No.2. As such, she had lodged the FIR, in question, against the petitioners.

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9. The person, who, at one point of time, had levelled the allegations against the petitioners, and had rt lodged the FIR, in question, appeared, before this Court and made a statement, on oath, that due to non-compatibility of temperament, differences have arisen between her and petitioner No.1 and thereafter, she had lodged the FIR, in question, against the petitioners. She has also deposed that the matter has been compromised between her and the petitioners, vide Compromise Deed Annexure P2.

10. In addition to this, she has deposed that since, it was not possible for her to live in the matrimonial home with petitioner No.1, as his legally wedded wife, as such, they have decided to part their ways and moved a petition for divorce, under Section 13B of the Hindu Marriage Act, 5 2025:HHC:38000 on the basis of mutual consent, before the Court of learned Principal Judge, Family Court, Solan, for dissolution of .

marriage. She has further deposed that in the said petition, petitioner No.1 and respondent No.2, have made joint statement for the first motion, on 7.8.2025. The case is now fixed in the month of February, 2026, for recording of their joint statement, on second motion. She has also stated that she has no objection, in case, the petition is rt allowed, as prayed for.

11. Similar type of statement has been made by the petitioners, on oath.

12. Heard.

13. Petitioner No.1 and respondent No.2, were married in the year 2022. Later on, compelled by the circumstances, their relations became constrained and due to the said fact, respondent No.2, has lodged, the FIR, in question.

14. As per the stand taken by the parties, since, it was not possible for petitioner No.1 and respondent No.2 to live together, as husband and wife, they have decided to part their ways, by moving a petition, under Section 13□B 6 2025:HHC:38000 of the Hindu Marriage Act, on the basis of mutual consent, before the Court of learned Principal Judge, Family Court, .

Solan, for dissolution of marriage, in which, their joint statement, on first motion, has been recorded and the matter is now listed, in the month of February, 2026, for recording their joint statement on second motion.

of Thereafter, the matter has been compromised, between the parties. The terms and conditions of the compromise, have rt been placed on record as Annexure P□2.

15. The criminal machinery, in the present case, has been put into motion, by respondent No.2, by lodging the FIR, in question. Now, as per the stand taken by the petitioners, as well as, respondent No.2, they have compromised the matter, in view of the compromise, Annexure P□2.

16. If, the statement of respondent No.2, is considered, in the light of the compromise, then, this Court is of the view that the chances of success of the prosecution case, against the petitioner, are not so bright, as, the person, who, at one point of time, had put the criminal machinery into motion, now, in unequivocal 7 2025:HHC:38000 terms, has deposed that the matter has been compromised and on the basis of the compromise, she does not want to .

continue with the case.

17. The primary purpose of the law is to maintain peace and harmony in the society. When, the petitioners and respondent No.2 have buried all the disputes by of compromising the matter, then, permitting the proceedings to continue, would be nothing, but, abuse of the process of rt law.

18. Even otherwise, acceptance of the compromise, by this Court, will save the precious judicial time of the learned trial Court, which, the learned trial Court will be in a position to devote for the decision of some other serious matters, pending before it.

19. Considering all these facts, the petition is allowed and FIR No.125 of 2023, dated 08.10.2023, registered Sections 498A, 323, 506, and 34 of the IPC, and Sections 3 and 4 of the DP Act, with Police Station Dharampur, District Solan, H.P., as well as, the proceedings resultant thereto, which are stated to be 8 2025:HHC:38000 pending before the learned trial Court, are ordered to be quashed.

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20. The compromise deed, Annexure P2, and the statements of the parties, recorded today, shall form part of the judgment.

21. Pending miscellaneous applications, if any, of shall also stand disposed of accordingly.

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(Virender Singh)
Judge

November 11, 2025(ps)